

26STCV01336 26STCV01336

County: los-angeles

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C1%2C09%2F02%2F2026

Source SHA-256: 7b962b009e45f3f5938a920200769c255ffbe899c2042b138978cd031f83dc90

Case Number: 26STCV01336 Hearing Date: September 2, 2026 Dept: 1

Moving Party: Defendants Regents of the University
of California (Arentfox Schiff LLP)

Responding

Party: Plaintiff Corina Haney (The Myers Law Group, A.P.C.)

Ruling: Demurrer is overruled
in its entirety, but the Court will lift the stay only as to discovery
pertaining to the CBAs.

This is a wage and hour putative class action. Plaintiff Corina Haney (Plaintiff) alleges that she and others were employed by defendant the Regents of the University of California (Defendant or the Regents), during which employment Defendant committed various violations of labor law and breached a collective bargaining agreement. Defendant demurs.

LEGAL STANDARDS

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Code Civ. Proc. § 589; Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) √ When considering demurrers, courts read the allegations liberally and in context. √ (Taylor v. City of Los Angeles Dept. of Water and Power √ (2006) 144 Cal.App.4th 1216, 1228.) √ In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc. § 430.30(a).) √ A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal. App. 3d 902, 905.) √ Therefore, it lies only where the defects appear on the face of the

pleading or are judicially noticed. (Ibid.)² The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.³ (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

“On demurrer the allegations of the complaint are assumed to be true. A demurrer is simply not the appropriate procedure for determining the truth of disputed facts.” (Ramsden v. Western Union (1977) 71 Cal.App.3d 873, 879.) “Less particularity is required when it appears that defendant has superior knowledge of the facts, so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.” (Okun v. Superior Court (1981) 29 Cal.3d 442, 458 (Okun).) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.) “[A] plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.” (Youngman v. Nevada Irrigation District (1969) 70 Cal.2d 240, 245 (Youngman); see also Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099 (Doheny Park Terrace).)

DISCUSSION

I.

Failure to Provide Meal Periods (COA 1)

II.

Failure to Provide Rest Periods (COA 2)

Defendant

contends that these causes of action are barred because as a public entity, it is not subject to the laws Plaintiff sues on.

It is not disputed that the Regents are a public entity. Stone v. Alameda Health System (2024) 16 Cal.5th 1040 (Stone) provides that neither the Labor Code provisions governing meal and rest breaks (Lab. Code §§ 226.7 and 512) nor Wage Order No. 5 apply to public employers. (Id.

at 1050, 1057.) Plaintiff contends

that Lab. Code § 512.1, which was enacted in 2022 to benefit certain healthcare workers, nonetheless permits these causes of action. That section provides:

(a) An employee directly

employed by an employer shall be entitled to one unpaid 30-minute meal period on shifts over 5 hours and a second unpaid 30-minute meal period on shifts over 10 hours, as provided by Section 512.

(1) The employee may waive a

meal period in accordance with subdivision (a) of Section 512 and paragraph (D) of Section 11 of Wage Order Number 4 or paragraph (D) of Section 11 of Wage Order Number 5 of the Industrial Welfare Commission.

(2) On-duty meal periods may be

provided in accordance with paragraph (A) of Section 11 of Wage Order Number 4 or paragraph (A) of Section 11 of Wage Order Number 5 of the Industrial Welfare Commission.

(b) An employee who is directly

employed by an employer shall be entitled to a rest period based on the total hours worked daily at the rate of 10 minutes net rest time per 4 hours or major fraction thereof, as provided by Wage Order Number 4 and Wage Order Number 5 of the Industrial Welfare Commission.

(c) If an employer fails to

provide to an employee a meal period or rest period in accordance with this section, the employer shall pay the employee one additional hour of pay at the employee's regular rate of compensation for each workday that the meal or rest period is not provided.

(d) This section does not apply

to an employee directly employed by an employer who is covered by a valid collective bargaining agreement that provides for meal and rest periods, and, if the employee does not receive a meal or rest period as required by the agreement, includes a monetary remedy that, at a minimum, is equivalent to one additional hour of pay at the employee's regular rate of compensation for each workday that the meal or rest period is not provided.

(e) As used in this section:

(1) "Employee" means an employee who provides direct patient care or supports direct patient care in a general acute care hospital, clinic, or public health setting.

(2) "Employer" means the state, political subdivisions of the state, counties, municipalities, and the Regents of the University of California.

(3) "General acute care hospital" means a health facility as defined in subdivision (a) of Section 1250 of the Health and Safety Code.

(Lab. Code § 512.1.) Stone expressly notes that Lab. Code § 512.1 extended meal and rest break benefits to public healthcare workers that were not available under the existing law it was analyzing. (See Stone, *supra*, 16 Cal.5th at 1058 and fn. 7.) Anticipating this contention, Defendant contends that Plaintiff is exempt under subdivision (d) of Section 512.1, because she is "covered by a valid collective bargaining agreement that provides for meal and rest periods, and...includes a monetary remedy that, at a minimum, is equivalent to one additional hour of pay at the employee's regular rate of compensation for each workday that the meal or rest period is not provided." (Lab. Code § 512.1(d).)

It is not disputed that Plaintiff worked subject to a CBA, as Plaintiff herself so pled in her complaint:

69. During the UCLA Class Period, Plaintiff and the UCLA Class performed worked pursuant to a collective bargaining agreement(s) between University of California and California Nurses Association Agreement – Registered Nurse Unit ("CBA").

70. Defendants are and were responsible for the acts or omissions complained of herein. Common law contractual principles, and the contract clause of the California Constitution, and Labor Code §1126 require payment to Plaintiff and the UCLA Class, who are

covered by the CBA and performed work as defined in the CBA.

(Complaint, ¶¶

69-70.) The only question is whether the

CBA Plaintiff references in the complaint fulfills the requirements of Lab.

Code § 512.1(d).

It is here that

Defendant's requests for judicial notice (RJN) becomes pertinent. Defendant presents for judicial notice a

document purporting to be a collective bargaining agreement effective November

22, 2025, between Defendant and the California Nurses Association (Registered

Nurse Unit), which Defendant contends is the (or one of the) CBAs referenced in

the complaint. Per Defendant, because it is referenced in the pleadings, the

Court may properly take judicial notice of the CBA on demurrer, despite it not

being attached to the pleadings. (See,

e.g., *Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th

743, 752-753 (Scott) [taking judicial notice of FDIC purchase and

assumption agreement that seized bank's assets where the agreement was posted

on the FDIC's website and the other party did not dispute the authenticity or

legal effect of the agreement].) Here,

however, Plaintiff disputes the effectiveness and enforceability of this 2025

CBA, noting that it is plainly unsigned, despite providing that it will not be effective

until signed:

MEMORANDUM

OF THE NEGOTIATORS

...

It is understood that the Agreement

is not binding unless and until both parties have executed it.

[¶...¶]

The parties agree that when the

approval process has been completed, the Agreement will become effective when

the authorized representatives for both parties have signed the document.

(RJN, Ex. A [2025

CBA], p. 182; see also p. 183 ["EXECUTION OF AGREEMENT" page without any

signatures].) Defendant responds that

Plaintiff has “already conceded in her complaint that she is a current employee who has worked pursuant to valid CBAs during the entire relevant time period[.]” citing paragraphs 4 and 69 of the complaint.

Had Plaintiff

alleged in her complaint that the CBA she worked under was the 2025 CBA, there is no question that the Court could judicially notice that CBA and consider its legal effect and consequences. (See *Ortega v. Contra Costa Community College District* (2007) 156 Cal.App.4th 1073, 1079 fn. 4 (*Ortega*) [Trial Court took judicial notice of CBA and grievance process set forth therein in ruling on demurrer for failure to exhaust administrative remedies]; *Scott, supra*, 214 Cal.App.4th at 752 [taking judicial notice of the effect of Purchase and Assumption Agreement that transferred assets but not liabilities].) However, Plaintiff does not allege precisely what the CBA was that she worked under and refuses to recognize the one Defendant presents as an applicable CBA, contending (correctly) that it is unsigned, as well as that it does not meet certain funding approval requirements of the Government Code.

There is simply not enough information in the Complaint about the CBA Plaintiff is alleged to have worked under for the Court to take judicial notice of the purported 2025 CBA as the instrument referenced in the pleadings. Plaintiff’s well-taken observations about the purported 2025 CBA render the matter an evidentiary issue inappropriate for disposition on the pleadings. Although Plaintiff has pled that she worked pursuant to CBAs during the entire relevant period, she has not pled anything allowing the Court to judicially notice the fact that the purported 2025 CBA is the CBA pursuant to which Plaintiff worked, so judicial notice is not the mechanism for resolving which contract, if any, governs the parties’ relationship. Plaintiff does not reference the precise CBA or CBAs she worked under in her complaint, and is not required to, as “a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.” (*Youngman, supra*, 70 Cal.2d at 245; *Doheny Park Terrace, supra*, 132 Cal.App.4th at 1099.) Defendant is on notice that Plaintiff claims she worked subject to some CBA, and Defendant clearly believes that depending on the provisions of that CBA, her claims under Lab. Code §

512.1 may be barred. This is precisely the sort of matter that is best explored through discovery.

Defendant also presents a putative 2022 CBA and a 2024 settlement agreement for judicial notice.

Even if the Court were to notice these documents, they could not fully dispose of these causes of action, as the 2022 CBA by its own terms terminated on October 31, 2025, approximately three months before this action was filed in January 2026. (See RJN, Ex. C, p. 348.) Even if the 2024 settlement between the union and the Regents were read into the 2022 CBA, the fact that a prior CBA might have complied with the requirements of the Labor Code would not apply Lab. Code § 512.1(d) to the entirety of Plaintiff's causes of action, but only the pre-October 31, 2025 portion.

(See Lab. Code § 512.1(d) ["This section does not apply to an employee directly employed by an employer who *is covered* by a valid collective bargaining agreement..." (emphasis added)].)

"A demurrer does not lie to a portion of a cause of action." (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682.) The Court will therefore overrule the demurrer to these causes of action.

III.

Breach of Contract (CoA 3)

Plaintiff's

complaint pleads the Third Cause of Action as "LABOR CODE §1126 BREACH OF CONTRACT CLAIM [¶] Violation of Labor Code §1126 and §222[.]" (Complaint, p. 13.) Those sections provide:

It shall be unlawful, in case of any wage agreement arrived at through collective bargaining, either wilfully or unlawfully or with intent to defraud an employee, a competitor, or any other person, to withhold from said employee any part of the wage agreed upon.

(Lab. Code § 222.)

Any collective bargaining agreement between an employer and a labor organization shall be enforceable at law or in equity, and a breach of such collective bargaining agreement by any party thereto shall be subject to the same remedies, including injunctive relief, as

are available on other contracts in the courts of this State.

(Lab. Code §
1126.)

As Plaintiff

notes, the Third Cause of Action arises not only out of these provisions, but out of general common law principles that Plaintiff expressly pled:

70. Defendants are and were responsible for the acts or omissions complained of herein. Common law contractual principles, and the contract clause of the California Constitution, and Labor Code §1126 require payment to Plaintiff and the UCLA Class, who are covered by the CBA and performed work as defined in the CBA.

(Complaint, ¶

70.) Defendant argues only that Lab.

Code §§ 222 and 1126 cannot support a cause of action against a public entity, and that Lab. Code § 1126 cannot be invoked by individual employees. Because these arguments ignore whether Plaintiff's asserted common-law basis is legally sufficient, even if successful, Defendant's demurrer would not entirely dispose of this cause of action. On reply, Defendant simply contends that "[t]he complaint specifically identifies Labor Code sections 222 and 1126 as the statutory bases for the cause of action."

That is not so, as shown by paragraph 70 above. "A demurrer must dispose of an entire cause of action to be sustained." (Fremont

Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th

97, 119; see also PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th

1680, 1682.) The Court will overrule the

demurrer to this cause of action.

IV.

Failure to Exhaust Remedies (All CoAs)

Defendant

contends that the putative 2025 CBA (Defendant's RJN, Ex. A) contains a procedure for the resolution of grievances, and that Plaintiff was required to exhaust those procedures before proceeding in court. This argument is premised on the assumption that Plaintiff's Lab. Code § 512.1 claims are barred by subdivision (d) of that section because the putative 2025 CBA meets the statutory requirements, which is itself premised on the assumption that the putative 2025 CBA is operative. As discussed above, whether the 2025 CBA is

operative such that the Section 512.1 claims are barred is disputed and cannot be resolved at this stage. The Court therefore cannot sustain the demurrer on this ground.

V.

Next Steps

In closing, the Court observes the following. While Plaintiff raises valid points to dispute taking judicial notice of the purported 2025 CBA on the pleadings, it is clearly vital for the parties to clarify which CBAs were in effect during the relevant time period, as the provisions of the operative CBAs will determine whether the First and Second Causes of Action under Lab. Code § 512.1 are barred by subdivision (d) of that statute, as well as whether Plaintiff is entitled to assert a cause of action for breach of any CBA under the Third Cause of Action. Although the Court must overrule the demurrer in its entirety because it cannot resolve the CBA issue on the pleadings, the CBA issue may well dispose of some or all of the litigation. As a result, the Court is inclined to open discovery only to address what CBAs are alleged to have governed the employment of Plaintiff and the putative class and what the CBAs' relevant language provides. These matters can likely be determined by requests for admissions and/or requests for the production of documents and should be if possible.

CONCLUSION

For the foregoing reasons, the demurrer is **OVERRULED**. Defendant is to file an answer to the Complaint within 30 days of this ruling.

The Court hereby lifts the stay solely as to CBA issues. The Court will set a date for a further status conference re: CBA discovery at the hearing upon discussion with the parties. Plaintiff to give notice.